

Chhote Lal Vishwakarma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 31 May 2022 · Writ-C No. 15419 of 2022 · **Writ disposed; liberty to object under Para 6.8; coercive recovery stayed eight weeks.**

HEADNOTE

A writ challenging a Tehsildar's electricity demand-recovery citation was disposed of without examining merits. The High Court granted liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directed a time-bound hearing and decision, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Chhote Lal Vishwakarma challenged a demand-recovery citation dated 14 June 2021 issued by the Tehsildar, Bansgaon, District Gorakhpur, for Rs 2,56,624 of electricity dues. He sought certiorari quashing the citation and mandamus restraining recovery while the writ was pending. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to assessment; stay of recovery

HOLDING

Without expressing any opinion on merits, a writ against an electricity demand-recovery citation may be disposed of by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, within a fixed period, directing the licensee to decide it in accordance with law after hearing, and staying coercive recovery until that decision or a short outer limit, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Court directed a Para 6.8 objection to be decided after hearing, with an eight-week stay of coercive action or until disposal of the objection, whichever was earlier. ¶ 4-5

assessment-6.8-alternate-remedy The writ was closed without a merits grant or refusal, relegating the consumer to the statutory Para 6.8 objection against the demand. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE DEMAND-RECOVERY CITATION

The Court expressed no opinion on the petitioner's case and did not examine whether the Rs 2,56,624 electricity demand was lawful. ¶ 4